

Exports and Imports (Control) Act, 1957

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EXPORT IMPORT (CONTROL) ACT, 2013

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Amending Acts

1. Some Nepal Laws (Amendment and Re-enactment) Act, 2020 2020.11.16
2. Export Import (Control) (First Amendment) Act, 2029 2029.6.15
3. Export Import (Control) (Second Amendment) Act, 2046 2046.6.11
4. Act Amending Some Nepal Acts Relating to Export Import and Intellectual Property, 2063 2063.8.8
5. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.10.7
6. Act Amending Some Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080 2080.12.30

Act Number 16 of the year 2013

An Act Made for the Prohibition or Control of Export Import

Whereas it is considered necessary to maintain peace and order by regulating the power to prohibit or control export import, this Act is hereby made and promulgated by His Majesty the King [Shree 5 Maharajadhiraja] on the advice of the Council of Ministers. 1. Short Title: This Act may be called the "Export Import (Control) Act, 2013". 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Export" means the act of exporting goods outside the Kingdom of Nepal.

(b) "Import" means the act of importing goods within the Kingdom of Nepal.

(c) "Notification" means an order published in the Nepal Gazette.

(d) "Published" means published in the Nepal Gazette. Amended by the Act Amending Some Nepal Acts Relating to Export Import and Intellectual Property, 2063.3.

Power of the Government of Nepal to Prohibit or Control Export Import: (1) If it appears necessary to prohibit or control the export or import of any article for achieving the following objectives, the Government of Nepal may, by notification, prohibit the export or import of such article, with or without conditions or a specified period, or impose a total or quantitative restriction:- (a) To protect national security interests, (b) To maintain public order, decency, or morality, (c) To regulate trade in gold, silver, or other similar metals or precious stones, (d) To protect against activities adverse to the health of human, animal, bird, or plant life, (e) To make appropriate arrangements regarding the import of goods produced by the labor of prisoners or convicts, (f) To protect national heritage of artistic, historical, or archaeological importance, (g) To make appropriate arrangements for the conservation of exhaustible natural resources (including restrictions on domestic

production or consumption), (h) To ensure the availability of domestic raw materials needed for national processing industries that may have competitive capacity, (i) To make appropriate arrangements for the procurement and distribution of goods in short supply at the local level, (j) To eliminate or prevent a situation of serious decline in foreign exchange reserves, or to increase the very low foreign exchange reserves and protect the country's external financial position and balance of payments, (k) To prevent a serious shortage of essential foodstuffs or other products of a similar nature, (l) To establish standards for the classification, grading, or marketing of consumer goods in international trade, (m) To avail of exemptions or concessions granted in foreign trade for least developed countries, (n) To protect national industries producing goods of a similar nature from serious adverse effects that may be caused by unexpectedly large volumes of imported goods, (o) To protect intellectual property such as patents, trademarks, copyrights, industrial designs, geographical indications, and protection of confidential information, (p) To promote or protect new skill or technology-based industries that enhance the country's competitive capacity, (q) To prohibit unhealthy or unauthorized trade activities or to control unfair competition, (r) To implement the Charter of the United Nations and multilateral international conventions or bilateral agreements to which Nepal is a party, and to fulfill obligations arising therefrom. (2) If it appears that it is no longer necessary to maintain a restriction imposed on the export or import of any article pursuant to subsection (1), the Government of Nepal may, by notification stating the basis and reason therefor, at any time adjust, alter, or remove such restriction.

Inserted by the Act Amending Some Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.3A. Formation of Trade Facilitation and Transparency Unit: (1) For maintaining facilitation and transparency in international trade, there shall be a Trade Facilitation and Transparency Unit as follows:-

S.No. Designation Description

- (a) Secretary of the Ministry of the Government of Nepal dealing with commerce matters Coordinator
- (b) Deputy Governor, Nepal Rastra Bank Member
- (c) Joint Secretary, Ministry of Finance Member
- (d) Joint Secretary, Ministry of Law, Justice and Parliamentary Affairs Member
- (e) Director General, Department of Customs Member
- (f) Director General, Inland Revenue Department Member
- (g) Director General, Department of Commerce, Supply and Consumer Protection Member-Secretary

(2) The functions, duties, and powers of the Trade Facilitation and Transparency Unit under subsection (1) shall be as follows:-

- (a) To coordinate with interstate bodies established to maintain transparency in trade,
- (b) To exchange information with bodies established in other countries to maintain trade regulation and transparency regarding the realistic valuation of prices, quantities, details, documents, or related matters concerning cross-border trade,
- (c) To send communication to the concerned body or the concerned country for action if any irregularity is found during coordination under clause (a) and information exchange under clause (b),
- (d) To recommend to the concerned body to formulate and implement necessary standards to maintain or cause to maintain transparency in cross-border trade,
- (e) To obtain information, details, and documents related to cross-border trade from the concerned body,
- (f) To monitor or cause to monitor trade-related activities through appropriate methods and software,
- (g) To recommend to the concerned body to include necessary conditions in Exim Code or commercial

documents of a similar nature,

(h) To perform other functions as prescribed in the rules relating to trade transparency.

(3) It shall be the duty of the concerned body or person to provide such documents and details if required by the Trade Facilitation and Transparency Unit in the course of performing its functions. 4.

Power of the Government of Nepal to Make Rules: (1) The Government of Nepal may make rules for carrying out the purposes of this Act. (2) Without prejudice to the generality of the power conferred by subsection (1), the Government of Nepal may make rules in respect of the following matters:- (a) Issuance of export import permits and the format of such permits, (b) Applications and evidence to be submitted to obtain such permit, (c) Permit fees, (d) Designating officers authorized to grant permits, (e) Determining persons eligible for permits and the quantity of permits, (f) Granting concessions for export or import without a permit, (g) Producing the permit when exporting or importing, Inserted by the First Amendment.(h) Specifying the period of validity of a permit and extending the term of an expired permit, Inserted by the First Amendment.(i) Circumstances in which a permit may be cancelled or suspended, Inserted by the First Amendment.(j) Requiring the submission of prescribed statistics or details of goods exported or imported under the permit. Amended by the Second Amendment.5. Punishment: (1) If any person exports or imports any article which is controlled or prohibited under this Act or a notification issued under this Act, or exports or imports articles differing, without reasonable cause, from the articles, value, or quantity specified in a permit issued for export or import under the rules made under this Act, such exported or imported article shall be confiscated and such person shall be liable to a fine equal to the value of such article or imprisonment for up to one year or both. (2) A person who abets an act punishable under subsection (1) shall be liable to half the punishment mentioned in that subsection. (3) Except as provided in subsections (1) and (2), if any person knowingly submits false or forged evidence or details to obtain a permit, or makes unauthorized additions, deletions, or alterations to an issued permit, or obstructs the work or proceedings of the office issuing the permit, the officer authorized to issue the permit may impose a fine of up to two thousand rupees on such person. (4) Except as provided in subsections (1), (2), and (3), any person doing any other act contrary to this Act or the rules made under this Act, the officer authorized to issue the permit may impose a fine of up to one thousand rupees on such person. (5) The officer authorized to issue the permit may, for a period of one to three years, refuse to issue an export import permit to or cancel the permit of a person liable to punishment under this section. Amended by the Second Amendment.6.

Jurisdiction to Hear Cases and Appeal: The concerned Customs Officer shall have the authority to commence proceedings and adjudicate cases regarding offenses under subsections (1) and (2) of section 5, and any person dissatisfied with such officer's decision may appeal to the Revenue Tribunal within thirty-five days. Inserted by the First Amendment.6A. Reward to Informant: If any person gives information regarding the export or import of any article contrary to this Act or a notification issued under this Act, and upon proceedings it is proven that such act has been committed, an amount equal to Amended by the Second Amendment.thirty percent of the value of the concerned article shall be given as a reward to such informant. Provided that, if it is determined that the information was given falsely with the intention of causing harassment or settling scores, and not on reasonable grounds or basis for giving information leading to proceedings, the person giving such false information shall be liable to a fine of two hundred to five hundred rupees. 7. Saving: Any restriction imposed by the Government of Nepal on any article or articles prior to the commencement of this Act shall remain in force until notification of its removal or amendment. 8. Repeal: All Acts, laws, charters, and sanads inconsistent with this Act and the rules made under this Act are hereby repealed or deemed amended to conform with this Act, to the extent of such inconsistency. Note:- (1) Section

5 of the Act Amending Some Nepal Acts Relating to Export Import and Intellectual Property, 2063 reads as follows:- 5. Effect upon lapse of the Ordinance Amending Some Nepal Acts Relating to Export Import and Intellectual Property, 2062: After the lapse of the Ordinance Amending Some Nepal Acts Relating to Export Import and Intellectual Property, 2062, unless a contrary intention appears, such lapse shall not- (a) revive anything not in force or existing at the time the Ordinance lapsed, (b) affect anything done or any right accrued or any obligation incurred under the Ordinance, (c) affect any right, privilege, obligation, or liability acquired, accrued, or incurred under the Ordinance, (d) affect any penalty, forfeiture, or punishment incurred under the Ordinance, (e) affect any investigation, legal proceeding, or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture, or punishment; and any such legal proceeding or remedy may be instituted, continued, or enforced as if the Ordinance had not lapsed. (2) Section 5 of the Export Import (Control) (Second Amendment) Act, 2046 reads as follows:- "5.